



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing four judgments on Tuesday 10 December 2019 and 14 judgments and / or decisions on Thursday 12 December 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 10 December 2019

[Bacaksız v. Turkey \(application no. 24245/09\)](#)

The applicant, Süleyman Bacaksız, is a Turkish national who was born in 1960 and lives in Denizli (Turkey).

The case concerns Mr Bacaksız's complaint that he was not able to participate in proceedings against him following a car accident.

The car accident in question occurred in 2000, causing injury to three drivers and their passengers. The police report drawn up on the scene noted that the applicant was at fault because he had crossed into the opposite lane, crashing into an oncoming car.

In the criminal proceedings brought against him he was, however, acquitted in 2004 and one of the other drivers was found to be at fault.

In the meantime, the courts had found for an insurance company in civil proceedings brought against the applicant for reimbursement of the sums it had had to pay to one of the other drivers as a result of the accident. The proceedings had been conducted in the applicant's absence because the Civil Court had not been able to locate him and serve the summons on him.

The applicant lodged an appeal with the Court of Cassation, requesting that the first-instance decision be quashed because he had only learnt of the proceedings when one of his relatives living at his previous address had found the summons posted on his door. He also argued that he had been fully acquitted in the criminal proceedings concerning the accident.

The Court of Cassation dismissed the applicant's appeal in 2008, holding that the decision had been lawful and that, in any case, a civil court was not bound by the conclusions of a criminal court. It did not respond to his argument about not being able to participate in the proceedings.

Relying in substance on Article 6 § 1 (right to a fair hearing) of the European Convention on Human Rights, Mr Bacaksız complains that the civil proceedings against him were unfair because he had been unable to participate in them.

[Kavala v. Turkey \(no. 28749/18\)](#)

The applicant, Mehmet Osman Kavala, is a Turkish national who was born in 1957 and lives in Istanbul (Turkey). He is currently detained, and is suspected by the authorities of attempting to overthrow both the Government and the constitutional order. Mr Kavala is a businessman who has been involved in setting up numerous non-governmental organisations ("NGOs") and civil-society movements which are active in the areas of human rights, culture, social studies, historical reconciliation and environmental protection.

Mr Kavala was arrested in Istanbul on 18 October 2017 on suspicion of attempting to overthrow the Government and the constitutional order through force and violence. The charges against him were linked to the Gezi Park events and to the attempted *coup d'état* of 15 July 2016.

In May 2013, following the start of demolition work in Gezi Park, – a green space in the centre of Istanbul –, environmental activists and local residents occupied the area. On 31 May 2013 the police intervened violently. The protests escalated in June and July 2013 and spread to several towns and cities in Turkey. Four civilians and two police officers were killed, and thousands of people were wounded.

Moreover, during the night of 15 to 16 July 2016 a group of members of the Turkish armed forces attempted to carry out a military coup aimed at overthrowing the Parliament, Government and President of Turkey. During the night of violence, more than 250 people were killed and more than 2,500 were injured. The national authorities blamed the network linked to Fetullah Gülen, a Turkish citizen living in the United States and considered to be the leader of an organisation described by the Turkish authorities as FETÖ/PDY (“Gülenist Terror Organisation/Parallel State Structure”).

From 21 July 2016 the Government declared a state of emergency for a period of three months; this state of emergency was subsequently extended for further periods of three months by the Council of Ministers, chaired by the President. The Turkish authorities gave notice to the Secretary General of the Council of Europe of a derogation from the Convention under Article 15.

On 31 October 2017 Mr Kavala, assisted by his lawyers, was questioned by police officers from the anti-terrorist branch of the Istanbul Security Headquarters. On 1 November 2017 the public prosecutor’s office called for Mr Kavala to be placed in pre-trial detention for “attempting to overthrow the constitutional order through force and violence” (Article 309 of the Criminal Code) and for “attempting to overthrow the Government or to prevent, through force and violence, the authorities from exercising their functions” (Article 312 of the Criminal Code). In justifying the suspicions in relation to the Gezi events, the prosecutor’s office alleged that Mr Kavala had led and organised demonstrations which were in fact an insurrection in which all the terrorist organisations had actively participated, with the aim of overthrowing the Government. On 8 November 2017 Mr Kavala lodged an objection against the order for his pre-trial detention. On 13 November 2017 the Istanbul 2nd magistrate’s court dismissed the appeal, on the grounds that the contested decision had complied with the procedure and the law.

Between November 2017 and August 2018 Mr Kavala submitted several applications for provisional release. In addition, the relevant magistrate’s courts examined, of their own motion, the applicant’s continued detention on several occasions and ordered that the measure be extended.

On 19 February 2019 the Istanbul public prosecutor’s office filed a bill of indictment in respect of Mr Kavala and 15 other suspects, accusing them, in particular, of having attempted to overthrow the government by force and violence, within the meaning of Article 312 of the Criminal Code, and of having committed numerous breaches of public order.

In the meantime, on 29 December 2017 the applicant lodged an individual application with the Constitutional Court. On 28 June 2019 the CCT published its judgment, in which it concluded by 10 votes to 5 that there had been no violation of Article 19 of the Constitution. It declared admissible the complaint made by Mr Kavala with regard to the lawfulness of the order placing him in pre-trial detention, but held that there had been no violation of Article 19 of the Constitution. It dismissed the complaint regarding the lack of a public hearing when examining the applications for release. The Turkish Constitutional Court held that the finding that there existed factual evidence giving rise to a strong suspicion concerning his responsibility and that the alleged offence was committed during the Gezi events, the ultimate aim of which was the overthrow of the Government, seemed neither arbitrary nor unjustified. As to the complaint regarding the lack of a public hearing when examining the applications for release, the Turkish Constitutional Court noted that in the

period between 1 November 2017 and 30 April 2019, the applicant had not been brought before the courts which were required to decide on the extension of his pre-trial detention. Holding that he had had the opportunity to bring an action for damages, it nonetheless declared this complaint inadmissible for failure to exhaust the ordinary remedies.

Before the Court, relying on Article 5 §§ 1 and 3 (right to liberty and security), the applicant complains about his initial and continued pre-trial detention, which he considers arbitrary. He alleges that there was no evidence grounding a reasonable suspicion that he had committed a criminal offence necessitating his pre-trial detention. He maintains that the domestic courts gave insufficient reasons for the decisions ordering and extending his pre-trial detention. Relying on Article 5 § 4, he submits that the Constitutional Court did not comply with the requirement of “speediness” in the context of the individual application he had brought before it to challenge the lawfulness of his pre-trial detention. Relying on Article 18 (limitation on use of restrictions on rights), he asserts that his Convention rights were restricted for purposes other than those prescribed in the Convention. In particular, he submits that his placement in detention was intended to punish him as a critic of the Government, to reduce him to silence as an NGO activist and human-rights defender, to dissuade others from engaging in such activities and to paralyse civil society in the country.

Just Satisfaction

[Uzan and Others v. Turkey \(nos. 19620/05, 41487/05, 17613/08, and 19316/08\)](#)

The case concerns attachment orders made in respect of the property of three relatives of the managers of İmarbank and two of their employees.

The applicants are Jasmin Paris Uzan, Renç Emre Uzan, Ayla Uzan-Ashaboğlu, Nimet Hülya Talu and Bilge Doğru.

In a [judgment](#) of 5 March 2019 the Court held that there had been a violation of Article 1 of Protocol No. 1 (protection of property) to the Convention. However, it reserved the question of the application of Article 41 (just satisfaction) for examination at a later date. It will rule on this issue in its judgment of 10 December 2019.

[Radzevil v. Ukraine \(no. 36600/09\)](#)

The applicant, Boris Radzevil, is a Ukrainian national, now deceased, who was born in 1936. Until his death in 2016 he lived in Odessa (Ukraine).

The case concerns the proceedings brought against him for hitting a man on a pedestrian crossing while driving to work. The man subsequently died of his injuries.

The proceedings were brought against him in September 2002 after he had gone to the hospital to enquire about the victim and had explained to a police officer present that he had accidentally hit him with his car.

During his trial, however, Mr Radzevil denied hitting the victim and said that he had suddenly fallen into his lane after an oncoming vehicle had gone past at very high speed.

He was convicted in December 2006 for breaching traffic regulations and causing a fatal accident. He was sentenced to four years’ imprisonment, but did not serve it as he was amnestied.

In convicting him, the trial court essentially relied on eye-witness statements. It also referred to the police officer’s statement about a volunteered confession, as documented in an “explanation” signed by Mr Radzevil at the police station. It found the police officer’s statement plausible, but excluded the “explanation” from the evidence because it was not a proper procedural document.

Mr Radzevil’s appeal against his conviction was unsuccessful, as was his request to admit two different lawyers to represent him in those proceedings. He lodged a cassation appeal with the Supreme Court, which was dismissed by the Supreme Court in January 2009.

Relying on Article 6 §§ 1 and 3 (c) (right to a fair trial within a reasonable time and right to legal assistance of own choosing), Mr Radzevil made a number of complaints of the unfairness of the proceedings against him. He alleged that he had been coerced by the police into incriminating himself without his constitutional rights being explained to him, that he had not been able to read the document he had signed at the police station because he had not had his reading glasses with him and that his request to appoint legal counsel during the appeal proceedings had been arbitrarily rejected. He also complained that the length of the proceedings, more than six years, had been excessive.

Thursday 12 December 2019

[Zikatanova and Others v. Bulgaria \(no. 45806/11\)](#)

The applicants are 147 Bulgarian nationals who were born between 1921 and 1987 who live or used to live in Sofia and in Sofia City Province (Bulgaria).

The case concerns the applicants' complaint about not being able to obtain restitution in kind for expropriated property and about prolonged uncertainty in resolving their restitution claims.

The applicants' predecessors owned plots of agricultural land on the outskirts of Sofia in an area called Vrazhdebna, which was incorporated into a cooperative in 1950. Ten years later the State expropriated part of the land, which was used by the Ministry of Education to create an experimental field for students and trainee agrobiologists.

After the collapse of communism, Parliament in 1991 enacted the Agricultural Land Act and the applicants subsequently applied to have their relatives' land returned to them. After various decisions and sets of proceedings related to the land, including actions related to possible restitution, the Sofia regional governor registered it as public State property.

Most of the applicants' individual restitution proceedings are still ongoing. Decisions that have been taken during those proceedings in the 1990s and 2000s include recognitions of the right to restitution, refusals to restore land in kind and decisions that compensation should be awarded instead. Some applicants have had land restored to them.

Relying on Article 1 of Protocol No. 1 (protection of property) in conjunction with Article 13 (right to an effective remedy), the applicants complain that it has not been possible to obtain the restitution in kind of land owned by their predecessors in Vrazhdebna and that there has been prolonged uncertainty in resolving their restitution claims.

[C and E v. France \(nos. 1462/18 and 17348/18\)](#)

The applicants are French nationals. There are three applicants in application no. 1462/18 (two adults, born in 1963 and 1965, and one child, born in 2010). There are five applicants in application no. 17348/18 (two adults, born in 1962 and 1969, and three children, born in 2014).

The applications concern the French authorities' refusal to enter in the register of births, marriages and deaths the details of the birth certificates of children born abroad as the result of a gestational surrogacy arrangement using the gametes of the intended father and a third-party donor, in so far as the birth certificates designate the intended mother as the legal mother.

Relying on Article 8 (right to respect for private and family life) and Article 14 (prohibition of discrimination) read in conjunction with Article 8, the applicants complain about the French authorities' refusal to record the full birth certificates in the register of births, marriages and deaths, and allege discriminatory interference with the children's right to respect for their private life.

Romeva v. North Macedonia (no. 32141/10)

The applicant, Olgica Romeva, is a Macedonian/citizen of the Republic of North Macedonia who was born in 1947 and lives in Skopje.

The case concerns a decision depriving her of a retirement pension.

In 2000 the Pension and Disability Fund granted Ms Romeva a retirement pension. The decision became final and she started receiving monthly payments.

However, following an internal audit in 2007 the Fund discovered that Ms Romeva had not been employed from 1963 to 1967, meaning she had not worked the statutory minimum of 35 years to qualify for a pension. In order to correct that mistake, the Fund opened a review of her case *proprio motu* and ruled in 2007 to retroactively divest her of the pension. All her appeals were unsuccessful, with the Supreme Court holding ultimately in 2010 that the Fund's decision had been lawful.

The Fund brought civil proceedings against Ms Romeva for reimbursement of the pension benefits paid to her between 2000 and 2007. The courts found for the Fund in a final judgment of 2014 and enforcement proceedings were started.

While the pension proceedings were still pending completion, Ms Romeva again became entitled to a pension as of November 2009 following changes to domestic legislation.

Relying on Article 1 of Protocol No. 1 (protection of property), Ms Romeva complains that she was deprived of her pension, which was her sole source of income. She also complains that the *proprio motu* reopening of the social security proceedings, resulting in the overturning of a final decision to grant her a pension, was in breach of the principle of legal certainty under Article 6 § 1 (right to a fair hearing).

Liviu Aurel Man and Others v. Romania (no. 39273/07)

The applicants in this case are two Romanian nationals, Liviu Aurel Man and Milena Man, husband and wife, born respectively in 1965 and 1967 and living in Cluj-Napoca (Romania), and three Romanian companies they own or administer, namely S.C. Exploziv Media S.R.L., S.C. Loretto Press S.R.L. and S.C. Token Media S.R.L..

Mr Man is a journalist and the president of the Gazeta press group, which publishes several investigative newspapers and weekly magazines targeting high-level corruption.

The case originates in accusations against Mr Man and other journalists on the Gazeta management team for operating a blackmailing network.

The prosecuting authorities started a criminal investigation in 2005 against Mr Man and five other journalists on the Gazeta management team on suspicion of blackmail and organised crime. They were accused of threatening to disclose compromising information about local politicians and businessmen unless they bought advertising space from the newspapers belonging to the Gazeta group.

In the context of those criminal proceedings, on 30 October 2006 Mr Man was arrested and searches of his home and two of his newspapers' headquarters were authorised and carried out.

During the search operation the police seized certain items, including documents and computers, which were eventually returned to the applicants in December 2009.

After his arrest Mr Man was taken in for questioning by the prosecutor and remanded in custody until March 2007 when he was released with a ban on him leaving town. He was eventually acquitted in the criminal proceedings against him in December 2017 as the domestic courts found that the accusations had not been proved.

During the criminal proceedings all assets and bank accounts belonging to the applicants were frozen to ensure that any compensation claimed by the alleged victims would be paid. At the end of the proceedings the appeal court decided to maintain the measures.

Mr Man attempted to have the measures lifted during the criminal proceedings, without success. He also raised a complaint about the unlawfulness of the searches carried out at his newspapers, but it was dismissed as ill-founded.

After completion of the criminal proceedings, Mr Man brought an action for compensation for the length of the criminal proceedings against him, which is still ongoing. He has also complained in those proceedings about the measures taken in respect of his assets and bank accounts.

The case was widely reported in the media. In particular, in December 2006 and January and February 2007 articles were published which included transcripts of conversations between Mr Man, other journalists and the Mayor of Cluj discussing local politicians and businesses and their advertising.

Mr Man brings two complaints under Article 3 (prohibition of inhuman or degrading treatment) alleging, first, that he was held in solitary confinement for 60 days after his remand in custody; and, second, that the prosecutor invited the media to photograph and film him being handcuffed and arrested by masked police officers, thus giving the impression that he was a dangerous criminal.

Various allegations are also brought under Article 8 (right to respect for private and family life, the home, and the correspondence) with regard to the searches and seizures and the authorities leaking Mr Man's telephone conversations to the press and inviting the media to cover his arrest and search of his home.

The applicants further allege in particular under Article 10 (freedom of expression) that the seizure of material necessary for editing their newspapers led to some of their publications being suspended or even stopped altogether.

Also relying on Article 1 of Protocol No. 1 (protection of property), they complain about the freezing of their assets and bank accounts.

Lastly, Mr Man raises complaints under Article 5 §§ 3 and 4 (right to liberty and security) about his arrest and pre-trial detention, under Article 6 §§ 1 and 2 (right to a fair trial) about irregularities in the criminal proceedings and under Article 13 (right to an effective remedy) taken in conjunction with Articles 3, 8, and 10 of the Convention and Article 1 of Protocol No. 1 to the Convention.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Thursday 12 December 2019

Name	Main application number
Movsum Samadov v. Azerbaijan	48431/11
Stanojević and Vanpamel v. Belgium and Serbia	3177/17
Ilieva v. Bulgaria	22536/11
Kartsivadze v. Georgia	30680/09
Allen v. Ireland	37053/18
Vecbaštika and Others v. Latvia	52499/11
Pace v. Malta	20319/15

Name	Main application number
Vella v. Malta	14612/19
Yevtushenko v. Russia	28961/11
Pikhun v. Ukraine	63754/09

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.